

Against Whom Writ May Lie

Ordinarily, a writ will lie against the State, statutory bodies, and persons charged with public duties. The issue of a writ against a private person requires special and exceptional circumstances.

Against Private Persons

- ***Sohan Lal v. Union of India:***

A displaced person and refugee filed a petition under Article 226 against the Union of India and a private person. The High Court granted the prayer and directed the private respondent to restore possession of the property to the petitioner.

- On appeal, the private respondent approached the Supreme Court and contended that a writ of *mandamus* could not lie against a private individual.
- Upholding this contention, it was observed that a writ of *mandamus* does not generally issue to a private individual; however, this is not an absolute, inflexible exception.

- ***Andi Mukta Sadguru Trust v. V. R. Rudani:***

A writ was issued against a private college run by a public trust. In this case, the Supreme Court successfully expanded the ambit and scope of the jurisdiction of High Courts by distinguishing Article 226 from Article 32 of the Constitution, giving a wide and purposive interpretation to the expression “*any person or authority*” under Article 226.

Against Legislature

The legislature in India cannot claim total immunity from judicial proceedings. In an appropriate case, the jurisdiction of the Supreme Court and High Courts can be exercised against the legislature:

- For instance, if a non-member is detained by an order of the legislature for contempt of the House, a writ of *habeas corpus* can be issued against the legislature.
- Justice Gajendragadkar specifically opined that the power conferred on the High Courts under Article 226 can be exercised against the legislature.
- Since Article 12 specifically includes the legislature of each State and of the Union, the maintainability or the capacity of the High Court to entertain a writ against the legislature cannot be challenged at a preliminary level.

Against Local Authority

“Local authority” has not been defined in the Constitution. Drawing from the General Clauses Act, it shall mean a municipal committee, district board, body of port commissioners, or other authorities legally entitled to or entrusted by the Government with control and management.

In *Union of India v. R.C. Jain*, it was held that an authority, in order to be a local authority, must possess distinct characteristics and attributes: - It must be legally entitled to or entrusted by the government with the control and management of a municipal or local fund. - It must have legal existence as a corporate body—not a mere governmental agency, but an independent legal entity. - It must function in a defined area and must ordinarily be elected by the inhabitants of that area. - A certain degree of autonomy must be enjoyed, with the freedom to decide for itself questions of policy affecting the area administered by it. - It must be entrusted by statute with such

governmental functions as are normally entrusted to municipal bodies (such as providing public amenities like health, education, etc.). - Finally, it must have the power to raise funds through taxes, rates, charges, or fees.

Against Judiciary

- ***Sahibzada Saiyed Muhammed Amirabbas Abbasi v. State of Madhya Bharat:***

This was a case where the District Court had appointed a guardian, and the petitioner (who was the father) moved the Supreme Court under Article 32. The Supreme Court dismissed the petition on the ground of an alternate remedy being available. With respect to the alleged violation of Article 14 by the District Court, it was observed that the denial of equality cannot be claimed against the decision of a competent judicial tribunal. The remedy in such a case is only through an appeal to a superior tribunal.

- ***Prem Chand Garg v. Excise Commissioner, U.P.:***

In this case, Rule 12 of Order 35 of the Supreme Court Rules was challenged. The rule empowered the Supreme Court to require the petitioner to furnish security for the costs of the respondent in writ petitions under Article 32.

- The petition was admitted by the Supreme Court; however, under this rule, the petitioner was directed to deposit a cash security of ₹2,500.
- Since the petitioner could not deposit this amount, an application for modification was made, which was denied, though the time for deposit was extended (which the petitioner failed to fulfill again).
- Therefore, the petitioner claimed that the said rule was invalid since it placed obstructions on the exercise of fundamental rights guaranteed by Article 32.
- The Supreme Court found the rule to be unconstitutional and revised the judicial order dismissing the petition under Article 32.

- ***Ujjam Bai v. State of U.P.:***

A tax was imposed on account of the misinterpretation of a notification. The majority refused to interfere with the decision taken by the authorities, holding that an error of law or fact committed by a judicial body cannot be impeached through a writ unless the erroneous determination relates to a collateral matter on which the jurisdiction of the body itself depends.

- ***A. R. Antulay v. R. S. Nayak:***

A complaint was filed by Mr. Nayak against A. R. Antulay, the former Chief Minister of Maharashtra, for offences under the IPC and the Prevention of Corruption Act (PCA).

- The case had been pending before the Special Judge for more than two years, due to which the Supreme Court directed the withdrawal of the case from the Special Judge to the High Court of Bombay.
- A Single Judge of the High Court of Bombay proceeded to frame charges in the matter.
- However, the appellant challenged the jurisdiction of the Single Judge and the earlier order of the Supreme Court transferring the case from the Special Judge to the Single Judge.
- The question was whether the direction issued by the Supreme Court was illegal, invalid, and inoperative.

- It was held that an order of the court—be it administrative or judicial—violative of the principles of natural justice or provisions of the Constitution can be remedied by the court *ex debito justitiae*.
- ***Rupa Ashok Hurra v. Ashok Hurra:***
A Supreme Court decision was challenged under Article 32 on the ground that it was a nullity. The Court held that the Supreme Court has the power to reconsider its earlier decisions under Articles 129 and 142 of the Constitution to do complete justice *inter partes* and to cure a gross miscarriage of justice; therefore, a **curative petition** falls within its inherent powers. If manifest injustice is not cured, the Supreme Court would lose its sanctity and betray the expectations of the founding fathers and mothers of the Constitution.

General Principles

The following general principles emerge:

- **Expansive Scope of Article 226:** The extraordinary powers of the High Court are as wide as the amplitude of the language used to indicate them; therefore, they can affect any person, even private individuals. Article 226 empowers every High Court to issue directions, orders, or writs to “*any person or authority, including in appropriate cases, any Government.*” Therefore, such a “person” may well be an entity other than a statutory authority or a government.
- **Liberal Interpretation of “Authority”:** The expression “authority” under Article 226 should receive a much more liberal meaning than the expression “State” or “other authorities” under Article 12.
- **Meaning of “Person”:** The expression “person” has not been exhaustively defined in the Constitution, but by virtue of Article 367, the General Clauses Act applies, which defines a “person” to include any company, association, or body of individuals, whether incorporated or not.
- **Writ of Habeas Corpus:** A writ of *habeas corpus* can be issued not only against the State, but also against a private individual; it is available for securing release from private, unlawful detention.
- **Collusion with Public Authority:** A writ can be issued against a private individual if it is proved that they have acted in collusion with a public authority.
- **Nexus with State Action:** Where an individual’s primary grievance is against the actions of the State, and other private persons are also claiming rights under the State or under a law enacted by the State, the writ petition may lie even if the dispute appears *inter se* between private individuals, as it is not unconnected with State action.
- **Writs in the Nature of Prerogative Writs:** Articles 32 and 226, although founded on the English common law system, expressly speak of directions, orders, or writs “*in the nature of*” the five writs. Therefore, the powers of the Supreme Court and High Courts are not strictly confined to the historical limits of English prerogative writs.
- **Avoiding Surplusage:** If the word “person” under Article 226 were construed to mean only a person exercising sovereign functions or governmental authority, the text of the Constitution would become surplusage and otiose.

- **Not a Substitute for Ordinary Civil Remedies:** Notwithstanding its wide amplitude, Article 226 should not be construed so as to replace the ordinary civil remedies available by way of a regular suit or application under the general law of the land.